

58	Aplizar vs. Bryan 23-01346664	Motion for Terminating Sanctions Defendants Aelee Bryan and Randal Bryan, erroneously sued and served as Randall Bryan, moves for terminating sanctions and an order striking the Complaint and dismissing the action of Plaintiff Jose Miguel Alpizar with prejudice. Defendants also request monetary sanctions in the amount of \$1,079.48. The motion is DENIED in part and GRANTED in part. On November 21, 2025, the Court granted Defendant Aelee Bryan’s unopposed Motion to Compel Plaintiff Jose Miguel Alpizar to provide a verified, full, and complete responses to Defendant’s Supplemental Discovery. (ROA 88 [11/21/25 Minute Order].) The Court ordered Plaintiff to provide a verified response without objections to Defendant’s supplemental discovery within fifteen days (15) of service of the ruling. (<i>Id.</i>) The Court further ordered Plaintiff to pay monetary sanctions to Defendant in the amount of \$780.00. (<i>Id.</i>) On November 24, 2025, Defendant filed Notice of Ruling that was served on Plaintiff via U.S. Mail. (ROA 91.) Plaintiff has not served any responses to the discovery or paid the ordered sanctions. (Barcelos-Pettit Decl. ¶ 5.) The discovery statutes evince an incremental approach to discovery sanctions, starting with monetary sanctions and ending with the ultimate sanction of termination. (<i>Doppes v. Bentley Motors, Inc.</i> (2009) 174 Cal.App.4th 967, 992.) If a lesser sanction fails to curb misuse, a greater sanction is warranted: continuing misuses of the discovery process warrant incrementally harsher sanctions until the sanction is reached that will curb the abuse. (<i>Id.</i>) The court finds that the record here does not support terminating sanctions. Defendants’ motion does not set forth substantial evidence of Plaintiff’s continuous obstructive and willful conduct in the discovery process warranting the ultimate sanction. Plaintiff shall fully comply with the court’s November 21, 2025 Order. Plaintiff is ordered to serve verified responses, without objection, to the outstanding Supplemental Interrogatory and Supplemental Demand for Production within 30 calendar days. The court warns Plaintiff Jose Miguel Alpiza that Plaintiff’s failure to comply with his discovery obligations may result in more severe sanctions, including terminating sanctions. Defendants Aelee Bryan and Randal Bryan to give notice.
59	Palma vs. South Orange County Community College District 21-01234121	Motion to Strike or Tax Costs Plaintiff William Palma’s motion to strike or tax costs claimed by Defendant South Orange County Community College District (“Defendant” or “SOCCCD”) is GRANTED IN PART and DENIED IN PART. On 10/9/25, Judgment was entered in favor of Defendant and against Plaintiff. On 10/24/25, Defendant filed a Memo. Of Costs in the amount of \$1,575.02. (ROA 454) The instant motion was filed on 11/10/25. (ROA 458.)